Tauheed Khan vs State on 24 May, 2012

Author: V.K. Shali

Bench: V.K. Shali

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*              HIGH COURT OF DELHI AT NEW DELHI

+                     BAIL APPN. No. 466/2012

                                          Date of Decision : 24.05.2012

TAUHEED KHAN                           ..... Petitioner
                            Through:      Mr. Sammer Chandra &
                                          Mr. Wiqar Ahmed, Advs.


                         versus

STATE                        ..... Respondent
                             Through:    Mr. Sunil Sharma, APP

CORAM:
HON'BLE MR. JUSTICE V.K. SHALI

V.K. SHALI, J. (Oral)
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1. This is an application for the grant of anticipatory bail in respect of FIR No.32/2011 under Sections 420/468/467/471/120-B registered by PS:Economic Offences Wing, Delhi Police.

2. The main contention of the learned counsel is that the petitioner is an innocent person who is running a Call Centre and has nothing to do with the fraud which has taken place and, therefore, he be enlarged on bail. The learned counsel has also assured the Court that the petitioner would cooperate with the investigations in unraveling the truth.

3. The learned APP has opposed the application for the grant of anticipatory bail to the petitioner on the ground that the petitioner is the main kingpin of this entire racket of fraud. In this regard, it has been stated by the learned APP that the number from which the credit card details were obtained by the petitioner or his co-accused from the American Embassy on telephone was issued to the petitioner by the American service provider. It has, accordingly, been stated that the petitioner is neck deep in this fraud committed by him.

4. I have carefully considered the respective submissions and also gone through the FIR.

5. Briefly stated, the facts of the case are that FIR No.32/11, u/s 420/467/468/471/120-B IPC, PS: EOW, New Delhi has been registered on the complaint of Shri Girish Luthra, Cluster Head with ICICI Merchant Services Pvt. Ltd., having its regional office at 11th Floor, Videocon Towers,

Jhandewalan Extn., New Delhi. In the complaint, it has been alleged that ICICI Merchant Services received information from the representative of the Bank of America (MBNA), based in the UK, that 44 of their customers' cards had been used fraudulently between 1.7.2010 to 20.7.2010. The transactions were processed in both Indian Rupees and US Dollars, with a combined value of Rs.7,84,01,931/- attempted and Rs.1,45,53,482/- successful. As per the enquiry of MBNA, it was found that the customers received telephonic calls from India through Telephone No.0203 026 6480 (all of these numbers would start with a zero if dialed from within the UK but may also present as starting with 0044) and they gave their security code to the caller (Tauheed Khan). The money was transferred in the account of Indian Human Welfare Association (IHWA) through its web portal www.indianhumanwelfaresociety.org. After conducting preliminary enquiry, the present case was registered. During the investigation, it was found that this No.0203 026 6480 is a VOIP No. and telephone number issued by a company, called Simwood based in London. The company had a contract with a company Novanet based in the USA who actually issued this number as a voice over internet protocol (VOIP) telephone number. That notice was sent to the Novanet to provide the user details of this VOIP No.0203 026 6480 during the alleged period. As per the reply of Novanet, this Number 0203 026 6480 was assigned to Tauheed Khan, the present petitioner, Address 178, Galib Apptt., West Pritam Pura, Delhi-110034, Phone Number:919873460801, E-Mail-tauheedahmed_khan@yahoo.co.uk<mailto:tauheedahmed_khan @yahoo.co.uk>. Mobile No.9873460801 is registered with Tauheed Ahmed Khan, c/o Sumit Asija, Flat No.21, Galib Apptts., Pritam Pura, near Deepali Chowk, Near Passport Office, Pitam Pura Club, New Delhi. Tauheed Khan is one who contacted and extracted the secret information from customers of Bank of America whose accounts have been compromised. The fraud occurred on the same day or on the next date after receiving the calls from VOIP No.0203 026 6480. During the investigation, it has also been found that the petitioner, Tauheed Khan also tried to withdraw the amount using his internet as some of the fraudulent transactions IP address belonging to the petitioner, Tauheed Khan, 178, Galib Apptts., Pitam Pura, Delhi.

6. The above facts, coupled with the fact that the petitioner, at the time of the search being conducted at his business premises as well as the residential premises, had managed to escape, clearly shows that he was involved in the matter. The complete truth cannot be unraveled without the custodial interrogation of the petitioner.

7. I am of the opinion that there is prima facie evidence which has been gathered by the Investigating Agency that the petitioner is the main person who was responsible for the commission of this fraud and, therefore, he deserves to be custodially interrogated.

8. This is not a fit case for the grant of anticipatory bail.

9. Petition is dismissed.

V.K. SHALI, J MAY 24, 2012 tp